

		Thus, where a motion under the discretionary relief provision is filed less than six months after entry of the default judgment, but more than six months after entry of its default—the court must deny the motion because it cannot set aside the default and allow the defendant to answer. And “because it [can]not set aside the default, it also [can]not set aside the default judgment ... because that would be ‘an idle act.’ ” (<i>Pulte Homes Corp. v. Williams Mechanical, Inc.</i> (2016) 2 Cal.App.5th 267, 273 (<i>Pulte Homes</i>)). “ ` ` ... If the judgment were vacated, it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. ...” ‘ [Citations.]’ ” (<i>Ibid.</i>) Here, Majid filed this motion on 9/13/24, less than six months after the entry of default judgment on 5/14/24, but more than six months after the entry of the defendants’ defaults on 11/3/23 and 11/9/23. (ROA Nos. 14, 16.) The motion is therefore untimely and must be denied. (See Code Civ. Proc., § 473, subd. (b); <i>Austin, supra</i>, 244 Cal.App.4th at p. 928; <i>Pulte Homes, supra</i>, 2 Cal.App.5th at p. 273.) The court declines to rule on plaintiff’s evidentiary objections as they are not material to the determination of this motion. Plaintiff shall give notice.
56.	Martinez v. Ford Motor Company 2023-01365862	Defendant Ford Motor Company’s demurrer to the First Amended Complaint of Plaintiff David Martinez is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) Plaintiffs shall have 21 days to file a Second Amended Complaint. <u>Sixth Cause of Action (Fraudulent Concealment)</u> To plead a cause of action for fraudulent concealment, the plaintiff must allege facts demonstrating, “(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]”

(*Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal.App.4th 124, 162.)

"There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336 (cleaned up).)

With respect to a relationship imposing a duty to disclose, Plaintiff does not adequately allege the existence of a transactional relationship. (See *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) In *Rattagan*, the court ruled a duty to disclose arises in 5 circumstances:

"(1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)."

(*Ibid.*)

"Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.' [Citation.] 'Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.' [Citation.]"

(*Ibid.*)

		Plaintiff argues that the Complaint alleges similar fraud allegations as those found sufficient in <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal. App. 5th 828. However, the court in <i>Dhital</i>, relied upon the allegations that the plaintiffs “bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers.” (<i>Dhital, supra</i>, 84 Cal.App.5th 828, 844.)) Plaintiffs do not make allegations that the dealership they purchased the Subject Vehicle from is an agent of Defendant for purpose of sale of the Subject Vehicle to consumers. The allegation of an agency relationship between the dealership and manufacturer was a dispositive factor in overruling the demurrer in <i>Dhital</i>. Since no such allegation is present here, no transactional relationship is alleged, and therefore the FAC does not adequately a cause of action for fraud by concealment. <u>Leave to Amend</u> The Court notes that Plaintiff has already been granted leave to amend the complaint to remedy these same defects. However, there is still a reasonable possibility that another opportunity to amend the complaint could result in a viable cause of action. Additionally, since demurrer has been sustained because of a lack of detail in the pleading, leave to amend is warranted. (See <i>City of Stockton v. Superior Court</i> (2007) 42 Cal.4th 730, 747.) Defendant shall give notice.
57.	Said v. Kia America, Inc. 2024-01402528	Plaintiff Mark A. Said’s motion to compel further responses to his first set of requests for production is DENIED. Plaintiff has failed to properly notice the motion “within 45 days of the service of the verified response ... or on or before any specific later date to which the demanding party and the responding party have agreed in writing” (Code Civ. Proc., § 2031.310, subd. (c)), and has further failed to demonstrate good cause for the discovery sought by the subject demands. (<i>Id.</i>, § 2031.310, subd. (b)(1).)